

# Public Comments

Paonia Board of Trustees — May 12, 2026, 6:30 PM

1. **Public Comment (Item D)** — opening statement, ~3:00
2. **Item G-1** — Verkada Termination (SUPPORT), ~2:45
3. **Item G-2** — Surveillance Camera Ordinance (OPPOSE / table it), ~2:55
4. **Item G-3** — Planning Commission Authority over Ch. 16, Art. 6, ~1:30
5. **Item G-4** — Smith Center Repairs Up to \$50,000, ~2:40
6. **Item G-5** — KLM Engineering Change Orders #4 & #5, ~2:45

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## Rules of the room.

- 3 minutes per comment. One time per item.
- Direct all comments to the Mayor.
- State name and in/out of town at the podium.
- Under Item G, comments must be related to the agenda item.
- Read at a deliberate pace. Pause at each paragraph break. Numbers spelled out are stress points.

## Opening Statement

Target time ~3:00 · ~395 words · The "What Has Not Been Answered" speech

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*[Approach podium. State name and that you live in town. Begin.]*

I want to put on the record tonight what this Board has not answered.

A formal written complaint I sent to every member of this Board on November 18, 2024. Today is day **541**. Not a single board member has replied.

A formal resubmission of that complaint, with 27 citations, on March 30 of this year. Day **43**. No reply.

A written retraction demand to the Mayor on March 31, 2026, for publishing a statement calling my flyer "libelous" — claims this Town's own filings now do not dispute. Day **42**. No retraction.

Two citizen ballot initiatives, rejected by the Clerk on so-called "administrative" grounds. No board member has explained the rejections.

The termination of Kaja Bowman, our Deputy Treasurer, 23 days after she asked the Mayor whether a complaint process existed. Day **215** since her termination. No investigation.

This Town's own Verkada audit log shows a Persons of Interest list, identity-database queries, and permanent video archives labeled with the names of specific Town employees — facial recognition infrastructure that was used as part of the basis for at least one termination. The Board's March 30 letter to citizens told residents the system has "*no facial recognition*." I sent the documentation to the Police Chief two weeks ago. He has acknowledged receiving it. The question of whether the system has been used for facial recognition has not been answered. The Board has opened no oversight inquiry.

My most recent Records Request — for the audit log of the Town's own accounting software, which tracks every change to who can approve a payment — was fulfilled *yesterday*, **11 days** past its deadline. The audit log itself was not produced.

Two agenda requests I submitted are not on your agenda tonight. No member has asked me why.

In that window I have filed multiple Open Records requests, prepared a Rule 106 complaint in Delta County District Court, and published the record at paoniatruth dot site.

Every one of those days passed in silence. The Mayor has not responded to a complaint, a retraction demand, or a rejected initiative. That is on the chair, and on every member who has stayed silent.

I will continue. Thank you.

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END · Sit down. Do not respond to any reply from the chair.

# Termination of the Verkada Contract

Target time ~2:45 · ~370 words

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*[Approach podium when item is opened for public comment. State name and in town.]*

I support terminating the Verkada contract. This Board ordered the cameras off on April 28. Tonight's vote ends the contract itself. That is the right call, and I am asking for it without reservation.

I want to be specific about what termination does, and what it does not do.

Ending the contract closes the chapter on this Town's relationship with Verkada. It does not answer what was done with the cameras while they were on.

This Town's own Verkada audit log, produced under Records Request C 26-09, shows a Persons of Interest list. It shows identity-database queries. Those are facial recognition operations. The Board's letter to citizens dated March 30, 2026 told residents the system has, quote, "*no facial recognition*." Those two records cannot both be true. The Board has not reconciled them. Terminating the contract does not reconcile them either.

The same audit log shows permanent video archives labeled with the names of specific Town employees. At least one of those archives was used as part of the basis for terminating an employee. The cameras are off. The contract may end tonight. The footage already captured, the archives that already exist, the people already affected — those are still in this Town's hands.

I am asking the Board, when it votes to terminate, to do three additional things on the record.

1. Direct that no Verkada-stored footage be deleted between now and the completion of an independent audit.
2. Open a formal investigation into how the Verkada system was used — by whom, against whom — between installation on October 22, 2025 and when this Board ordered the cameras off. Report the findings to the public.
3. Acknowledge what the rejection of the citizen surveillance initiative on April 27 was actually about. Citizens of this Town filed to put the question of Town surveillance on a ballot. That filing was rejected by the Clerk. Termination tonight is the right outcome — but the citizens who filed that initiative deserve to vote on whether any camera system comes back at all.

Termination is one step. The full accounting is what we are still waiting for.

Thank you.

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END · Sit down.

## Surveillance Camera Ordinance — Oppose

Target time ~2:55 · ~395 words · The "investigate first, citizens vote second, ordinance last" speech

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*[Approach podium when item is opened for public comment. State name and in town.]*

I am asking the Board to table this draft Surveillance Camera Ordinance.

If this Board has just voted to terminate the Verkada contract, as I believe it should, then this ordinance is an ordinance for a camera system that no longer exists. The cameras are off. The contract is ending. There is no Town surveillance system in operation tonight that this ordinance regulates.

What an ordinance like this one does, then, is something different. It builds a framework that *authorizes* Town surveillance — without ever asking the citizens of this Town whether they want to be surveilled in the first place. It reserves that option, by Board action, for a future this Town has not voted on.

Citizens of this Town have already tried to vote. A ballot initiative declaring it the policy of the Town that the Town shall *not* conduct continuous electronic surveillance of persons in public spaces was filed on April 27, 2026, and rejected by the Town Clerk on what were called administrative grounds. No member of this Board has explained that rejection.

There are also questions about what was done with the cameras while they were on that this Board has not investigated or answered. There are entries in this Town's own audit log — a Persons of Interest list, identity-database queries, permanent archives labeled with the names of specific employees — that no member of this Board has publicly accounted for. Drafting an ordinance that contemplates future surveillance, before answering what happened with the surveillance we already had, puts the cart in front of the horse.

The premise of the draft in your packet is that surveillance is an acceptable Town function that simply needs better rules. That is not a premise the citizens of this Town have agreed to. It is a premise the Board has assumed.

My ask is straightforward. Table this ordinance. Open the investigation into what was already done. Stop blocking the citizen initiative. If, after those things, the citizens of this Town decide they want a surveillance system, then bring back an ordinance.

Thank you.

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END · Sit down.

## Planning Commission Authority — Ch. 16, Art. 6

Target time ~1:30 · ~205 words · Short. Skip if you're winded.

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*[Approach podium when item is opened for public comment. State name and in town.]*

I support granting the Planning Commission authority to review Chapter 16, Article 6.

I served on the Planning Commission for four months in 2024 and resigned in December of that year. In that time I learned that the Commission's effectiveness depends entirely on two things. First, whether the Board grants it authority to look at substantive code questions. Second, whether commissioners can ask questions without facing administrative push-back.

The first half — the authority half — you are voting on tonight. I encourage the Board to grant it.

The second half — whether commissioners can do their work without retaliation — is a separate question, and one I have raised in writing with this Board on November 18, 2024, and again on March 30, 2026. Neither letter has received a response. If the Board is genuinely returning substantive authority to the Planning Commission tonight, then the Board's commitment to a functioning complaint process for commissioners has to come with it.

Thank you.

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END · Sit down.

## Smith Center Repairs — Up to \$50,000

Target time ~2:40 · ~365 words

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*[Approach podium when item is opened for public comment. State name and in town.]*

The Smith Center is housed at the Paonia Assembly Hall. The mold problem is real. I support remediating it.

I want to flag what is in your packet — and what is not.

Your packet contains two competitive bids for mold remediation. Mesa Restoration of Grand Junction, at **\$17,861.67**. Paul Davis Restoration of Western Colorado, at **\$16,792.28**. Both cover essentially the same scope, and both are well under \$20,000.

The motion in front of you tonight authorizes **up to \$50,000** — nearly three times either bid — to cover, in the agenda's own words, *"mold remediation, electrical and a general contractor."*

Your packet contains **no bids for the electrical work**. Your packet contains **no bids for a general contractor**. The amount above the \$17,000 mold remediation bid — that is, more than \$30,000 — is being authorized tonight as a discretionary administrative bucket.

Under Colorado law, a Town this size has to put public-improvement contracts over \$25,000 out for published, competitive bids. The mold remediation portion alone is under that line. The full \$50,000 authorization, when the electrical and general-contractor work go out without public bidding, is over it.

My ask is straightforward.

Approve the mold remediation against the competitive bids in your packet. That is the work the citizens of this Town can see priced.

For the electrical and the general contractor scopes, send those back for separate competitive bids under the public-improvement statute, with the bid records included in the next agenda packet so the public can see what is being approved.

This is the same procurement pattern that produced the Verkada contract. The Board has a chance, tonight, to handle this one differently.

Thank you.

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END · Sit down.

## KLM Engineering Change Orders #4 & #5

Target time ~2:45 · ~370 words

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[Approach podium when item is opened for public comment. State name and in town.]

The original KLM agreement for inspection of the 2-million-gallon water tank coating was for **\$97,860**.

Change Orders 1, 2, and 3 added another **\$92,563**.

If you approve Change Orders 4 and 5 tonight, both at \$5,145 each, the project total becomes **\$200,713**.

That is **105%** over the original not-to-exceed contract.

Two specific concerns for the record.

First. Change Order 4 and Change Order 5 carry **identical descriptions** in the documents you were given: "*Mobilization and Final Inspection*." They are dated six days apart — April 24 and April 30. Same dollar amount. I do not understand from the packet why this work could not have been a single change order, and I see no explanation in the staff report. I would ask the Board to require an explanation on the record before approving both.

Second. On April 28, this Board approved Change Order Number 3. The minutes of that meeting record the discussion as anticipating that, quote, "*the overall project would still remain under the original estimated budget*." Two weeks later, the project is at **205%** of the original. The statement made to this Board on April 28 was either incorrect at the time, or the circumstances have materially changed in 14 days. Either way, the Board is owed an explanation, and so are the citizens funding the project.

This is the kind of cost overrun that, in a town with a functioning Finance Committee posting minutes, agendas, and review logs, would already have produced a written analysis. As of last week's records request, no such Finance Committee records exist on file.

The Board is being asked to approve \$200,000 in inspection services with no independent financial review on the public record.

Thank you.

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END · Sit down.